

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: August 18, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
LINE 1	26CV489278	City of San Jose vs Mua Tran	Hearing: OSC TRO/ Preliminary Injunction Scroll down to Line 1 for Tentative Ruling.
LINE 2	26CV493956	Gianni Amato vs Plan 51 Homeowners Association et al	Hearing: OSC TRO/ Preliminary Injunction Scroll down to Line 2 for Tentative Ruling.
LINE 3	26CV494024	Zeyu Wang vs Public Storage Operating Company	Hearing: Statement on Appeal Parties to appear. On August 14, 2026, the clerk's office requested to take the matter OFF CALENDAR as the appellant Zeyu Wang filed an unconditional notice of settlement of the entire case. Mr. Wang has not filed a notice of withdrawal of his statement on appeal or dismissal. Appellant's Statement of Appeal is regarding the July 7, 2026, denial after hearing of a preliminary injunction. Upon the evidence presented, oral arguments, and the matter being submitted, Mr. Wang's likelihood of succeeding the merits has not been met and upon balancing the hardships, adequate legal remedies, and irreparable harm, the injunction was denied. Mr. Wang filed a statement of appeal on July 10, 2026. Respondent/ Defendant Public Storage Operating Company filed a proposed amendment to appellant's Wang's statement on appeal on July 21, 2026. The Court filed an Order Concerning Appellant's Proposed Statements of Appeal on July 30, 2026. The Court will inquire whether the statement of appeal is being withdrawn by the appellant or if parties seek to move forward with oral arguments.

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9:00 A.M.

Calendar Line # 1

Case Name City of San Jose vs Mua Tran

Case No. 26CV489278

Order to Show Cause: Preliminary Injunction

Before the Court is this OSC for defendant to show cause as to why a preliminary injunction should not issue regarding 1195 Piedmont Road, San Jose, California 95132 and why a receiver should not be appointed as requested by the City.

I. BACKGROUND

This housing violation and public nuisance case stems from a March 13, 2026 Complaint filed by the City of San Jose (“City”) against Defendant Mua Tran (“Tran”) regarding dilapidated and unlicensed structures on the residence located at 1195 Piedmont Road, San Jose, California 95132 (“Subject Property”).

On May 6, 2026, the City filed a preliminary injunction against the Defendant and appointment of a receiver regarding the Subject Property. The motion was accompanied by a proof of service indicating mail service to Defendant Tran.

Per California Code of Civil Procedure section 1005(b) opposition papers were due on August 5, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the nonresponding party has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

On August 13, 2026, the City has moved for a basic entry of default on which was entered by the clerk on that day.

The Court has carefully reviewed the City’s notice of preliminary injunction (totaling 3 pages); memorandum of points and authorities (totaling 10 pages); Declaration of George Gange and attached Exhibit A (totaling 4 pages); Declaration of Hanna Odekirk and attached Exhibit A and Proposed Order of the Preliminary Injunction (totaling 8 pages); Declaration of Manuel Duarte and attached Exhibits A-G (totaling 65 pages); Declaration of Richardson Griswold and attached Exhibits A-B (totaling 42 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

A. PRELIMINARY INJUNCTION

The purpose of a preliminary injunction is to preserve the *status quo* pending final resolution upon a trial. (*Scaringe v. J.C.C. Enterprises, Inc.*, (1988) 205 Cal.App.3d 1536; *Grothe v. Cortlandt Corp.*, (1992) 11 Cal.App.4th 1313, 1316; *Major v. Miraverde Homeowners Assn.*, (1992) 7 Cal.App.4th 618, 623). The *status quo* has been defined to mean the last actual peaceable, uncontested status which preceded the pending controversy. (*Voorhies v. Greene* (1983) 139 Cal.App.3d 989, 995, quoting *United Railroads v. Superior Court*, (1916) 172 Cal. 80, 87; *14859 Moorpark Homeowner’s Assn. v. VRT Corp.*, (1998) 63 Cal.App.4th 1396. 1402).

In determining whether to issue a preliminary injunction, a court must weigh two interrelated factors: (1) the reasonable probability that the plaintiff will ultimately prevail on the merits at trial (Code of Civ. Proc. §526(a)(1)), and (2) the relative interim harm and “irreparable harm” to the parties from issuance or noninsurance of the injunction. (*Id.*, at (a)(2); *14859 Moorpark Homeowner’s Assn.*, *supra*, 63 Cal.App.4th at 1402; *Pillsbury, Madison & Sutro v. Schectman*, (1997) 55 Cal.App.4th 1279, 1283; *Davenport v. Blue Cross of California*, (1997) 52 Cal.App.4th 435, 446). The court’s determination must be guided by a ‘mix’ of the potential-merit and interim-harm factors; the greater the plaintiff’s showing on one, the less must be shown on the other to support an injunction.”